

An Act

ENROLLED SENATE
BILL NO. 1466

By: Bergstrom of the Senate

and

Kendrix of the House

An Act relating to professions and occupations; amending 59 O.S. 2021, Section 3040.5, which relates to the Advisory Committee on Midwifery; extending sunset date; updating statutory language; providing an effective date; and declaring an emergency.

SUBJECT: Advisory Committee on Midwifery

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 3040.5, is amended to read as follows:

Section 3040.5. A. There is hereby created, to continue until ~~July 1, 2026~~ July 1, 2031, an Advisory Committee on Midwifery, which shall consist of seven (7) voting members to be appointed by the State Commissioner of Health as follows:

1. Three licensed midwives, each of whom has at least three (3) years of experience in the practice of midwifery;

2. One Certified Nurse-Midwife;

3. One physician who is certified by a national professional organization of physicians that certifies obstetricians and gynecologists and supports the practice of midwifery;

4. One physician who is certified by a national professional organization of physicians that certifies family practitioners or pediatricians and supports the practice of midwifery; and

5. One member of the general public who is not practicing or trained in a health care profession⁷ and who is a parent with at least one child born with the assistance of a licensed midwife or a Certified Nurse-Midwife.

B. Members of the Committee shall be divided into three classes. The initial terms of the first class shall expire on January 31, 2023, and subsequent terms shall expire on January 31 of each sixth year thereafter. The initial terms of the second class shall expire on January 31, 2025, and subsequent terms shall expire on January 31 of each sixth year thereafter. The initial terms of the third class shall expire on January 31, 2027, and subsequent terms shall expire on January 31 of each sixth year thereafter. Members shall serve until a qualified successor has been duly appointed. The Commissioner shall fill a vacancy no later than sixty (60) days from the date the vacancy occurs. No person shall be appointed to serve more than two (2) consecutive terms.

C. The Committee shall annually elect a chair and ~~vice-chair~~ vice chair from among its members.

D. The Committee shall meet at least semiannually and at any other time at the call of the chair or the Commissioner.

E. The Committee shall meet in accordance with the Oklahoma Open Meeting Act.

F. A majority of the members of the Committee, including at least two licensed midwives, shall constitute a quorum for the conduct of Committee business.

G. 1. The Committee shall advise the Commissioner on all matters pertaining to midwifery including, but not limited to:

- a. scope and standards of practice,
- b. licensure requirements, examination requirements, exceptions thereto, renewal requirements, temporary

licensure, and endorsement or reciprocity requirements,

- c. methods and requirements for ensuring the continued competence of licensed and registered persons including the type of courses and number of hours required to meet the basic midwifery education course and continuing midwifery education course requirements, and instructors or facilities used in the basic and continuing education requirements,
- d. procedures for reporting of outcomes including, but not limited to, live births and fetal, newborn, or maternal deaths,
- e. grounds for reporting and processing complaints, violations, probation, revocation or suspension of license, or reinstatement provisions, and
- f. all other matters which may pertain to the practice of midwifery.

2. The Committee shall review and make recommendations to the Commissioner on all applications for licensure.

3. The Committee shall assist and advise the Commissioner in all hearings related to the enforcement of Shepherd's Law. The Committee shall review all complaints and make recommendations to the Commissioner on appropriate disciplinary action including, but not limited to, administrative fines, license revocation, and license suspension.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 19th day of February, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 29th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____